Tamil Nadu Electricity Board vs M/S Saheli Exports Pvt. Ltd. & Ors on 28 March, 2011

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

IA-54 of 2011 in
DFR No. 1546 of 2010

Dated 28th March, 2011
Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. V.J. Talwar, Technical Member

Tamil Nadu Electricity Board ... Appellant(s)

Versus

M/s Saheli Exports Pvt. Ltd. & Anr. ....Respondent(s)

Counsel for the Appellant(s): Mr. Mohammed Rafi

ORDER

IA-54 of 2011 (Condone delay Application) This is an Application to condone the delay of 272 days in filing the Appeal as against the Order passed on 16.11.2009. The only explanation that has been given by the Applicant/Appellant is that they decided to file an Appeal against the Order dated 16.11.2009 only after the Order that was passed by the State Commission on 17.08.2010, which is said to be contrary to the Order dated 16.11.2009. This explanation, in our view, is not satisfactory. As a matter of fact, as admitted by the learned counsel for the Applicant/Appellant that the Order dated 16.11.2009, by which directions had been issued to both the Applicant as well as Respondents have been complied with. Therefore, we do not find any satisfactory reason to conclude that there is any sufficient cause to condone the delay.

Therefore, the Application to condone the delay as well as the Appeal is dismissed.

(V.J. Talwar)
Technical Member

(Justice M. KarpagaVinayagam)
Chairperson

TS/KS